



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1670: municipalities; counties; occupation; licensure; prohibition

WENINGER FLOOR AMENDMENT

1. Removes municipal and county authority to require a person to be licensed and issue a journeyman license for specified occupations.

ADDITIONAL COW
WENINGER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1670
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. State preemption; contractors; journeymen;
5 licensure; prohibition; definitions

6 A. THE LICENSURE OF PERSONS SUBJECT TO TITLE 32, CHAPTER 10 IS OF
7 STATEWIDE CONCERN. THE LICENSURE OF PERSONS SUBJECT TO TITLE 32, CHAPTER
8 10 IS NOT SUBJECT TO FURTHER REGULATION BY A MUNICIPALITY EXCEPT AS
9 PROVIDED IN THIS SECTION.

10 B. A MUNICIPALITY MAY NOT REQUIRE A PERSON TO OBTAIN A JOURNEYMAN
11 LICENSE IF THE PERSON IS SUBJECT TO LICENSURE PURSUANT TO TITLE 32,
12 CHAPTER 10.

13 ~~[C. A MUNICIPALITY MAY REQUIRE A PERSON TO BE LICENSED AND MAY~~
14 ~~ISSUE A JOURNEYMAN LICENSE FOR THE FOLLOWING OCCUPATIONS:~~

15 ~~1. PLUMBING.~~

16 ~~2. PIPE FITTING.~~

17 ~~3. MECHANICAL TRADES.~~

18 ~~4. HVAC INSTALLATION.~~

19 ~~5. ELECTRICAL OR ALARM SYSTEM TRADES.~~

20 ~~D.][C.]~~ FOR THE PURPOSES OF THIS SECTION:

21 1. "LICENSURE" MEANS ANY TRAINING, EDUCATION, TEST, CERTIFICATION,
22 REGISTRATION OR LICENSE THAT IS REQUIRED FOR A PERSON TO PERFORM AN
23 OCCUPATION IN ADDITION TO ANY ASSOCIATED LICENSING FEE.

24 2. "OCCUPATION" MEANS A PAID JOB, PROFESSION, WORK, LINE OF WORK,
25 TRADE, EMPLOYMENT, POSITION, POST, CAREER, FIELD, VOCATION OR CRAFT.

1 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
2 is amended by adding section 11-269.31, to read:

3 11-269.31. State preemption; contractors; journeymen;
4 licensure; prohibition; definitions

5 A. THE LICENSURE OF PERSONS SUBJECT TO TITLE 32, CHAPTER 10 IS OF
6 STATEWIDE CONCERN. THE LICENSURE OF PERSONS SUBJECT TO TITLE 32, CHAPTER
7 10 IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY EXCEPT AS PROVIDED IN
8 THIS SECTION.

9 B. A COUNTY MAY NOT REQUIRE A PERSON TO OBTAIN A JOURNEYMAN LICENSE
10 IF THE PERSON IS SUBJECT TO LICENSURE PURSUANT TO TITLE 32, CHAPTER 10.

11 ~~[C. A COUNTY MAY REQUIRE A PERSON TO BE LICENSED AND MAY ISSUE A~~
12 ~~JOURNEYMAN LICENSE FOR THE FOLLOWING OCCUPATIONS:~~

13 ~~1. PLUMBING.~~

14 ~~2. PIPE FITTING.~~

15 ~~3. MECHANICAL TRADES.~~

16 ~~4. HVAC INSTALLATION.~~

17 ~~5. ELECTRICAL OR ALARM SYSTEM TRADES.~~

18 ~~D.][C.]~~ FOR THE PURPOSES OF THIS SECTION:

19 1. "LICENSURE" MEANS ANY TRAINING, EDUCATION, TEST, CERTIFICATION,
20 REGISTRATION OR LICENSE THAT IS REQUIRED FOR A PERSON TO PERFORM AN
21 OCCUPATION IN ADDITION TO ANY ASSOCIATED LICENSING FEE.

22 2. "OCCUPATION" MEANS A PAID JOB, PROFESSION, WORK, LINE OF WORK,
23 TRADE, EMPLOYMENT, POSITION, POST, CAREER, FIELD, VOCATION OR CRAFT.

24 Enroll and engross to conform

25 Amend title to conform

JEFF WENINGER

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